BEFORE THE MOTOR ACCIDENT CLAIMS TRIBUNAL, COIMBATORE
M.C.O.P. NO. 1442 OF 2024
(Claim petition under Section 166 of the Motor Vehicles Act, 1988)

1. Smt. Selvi Ammal, W/o Late Shri Murugan, aged about 38 years
2. Minor Karthik, S/o Late Shri Murugan, aged 11 years,
   represented by his mother and natural guardian Petitioner No. 1
   Both residing at 44, Peelamedu, Coimbatore - 641004

... Petitioners

Versus

1. Shri Ramasamy Gounder (Driver and owner of the offending vehicle)
2. M/s Bharat General Insurance Company Limited,
   Divisional Office, Avinashi Road, Coimbatore
   Policy No. BGI/CBE/2023/0091847

... Respondents

CLAIM PETITION

1. That on 18/02/2024 at about 19:20 hrs the deceased Shri Murugan, aged 42 years, was proceeding on his motorcycle bearing registration No. TN 37 BX 4412 along the Avinashi Road when the offending vehicle, a lorry bearing registration No. TN 38 AL 9021, driven by Respondent No. 1 in a rash and negligent manner, dashed against him from behind.

2. That the deceased sustained grievous injuries and succumbed to them on the same day. FIR No. 122/2024 was registered at Peelamedu Police Station u/s 279 and 304A IPC. The post-mortem was conducted at Coimbatore Medical College Hospital.

3. That the deceased was employed as a lathe operator and was earning Rs. 24,000/- per month. He was the sole breadwinner of the family.

4. That the offending vehicle was insured with Respondent No. 2 under a valid policy covering the date of the accident, and the Respondents are jointly and severally liable to compensate the Petitioners.

5. That the Petitioners claim compensation of Rs. 48,00,000/- (Rupees Forty Eight Lakh only) under the following heads: loss of dependency, loss of consortium, loss of estate, funeral expenses and conventional damages.

It is therefore prayed that this Hon'ble Tribunal be pleased to award compensation of Rs. 48,00,000/- with interest at 9% per annum from the date of the petition till realisation, and costs.

Coimbatore
Dated: 06/05/2024

Counsel for the Petitioners
Shri K. Manikandan, Advocate